



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

October 24, 2022

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 9393
(SIXTEENTH REVISION)

EXPIRATION DATE: 2026-09-30

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Illinois Tool Works, Inc.
Decatur, AL
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes the manufacture, mark, sale, and use of a non-DOT specification, non-refillable cylinder for use in transporting certain Division 2.2 gases. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. In accordance with 49 CFR 107.107(a) party status may not be granted to a manufacturing permit. These packagings may be used in accordance with 49 CFR 173.22a.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171- 180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.304a(a)(1) in that non-DOT specification cylinders are not authorized, except as specified herein.
5. BASIS: This special permit is based on the renewal application of Illinois Tool Works, Inc. dated September 26, 2022, submitted in accordance with § 107.109.

Tracking Number: 2022095302

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Chlorodifluoromethane or refrigerant gas, R 22	2.2	UN1018	N/A
Compressed gases, n.o.s.*	2.2	UN1956	N/A
Mixture of Isobutane, Chlorodifluoroethane, and Chlorodifluoromethane/Compressed gases, n.o.s.	2.2	UN1956	N/A
Refrigerant gases--the proper shipping name listed in the hazardous materials table in 49 CFR § 172.101.	2.2	As appropriate	N/A

*See paragraph 7.b.(3) of this special permit.

7. SAFETY CONTROL MEASURES:

a. PACKAGING: A non-DOT specification steel cylinder consisting of a seamless shell with the bottom attached by a mechanical seam. Construction must be in conformance with applicants drawing SKE-84-101-A on file with the Office of Hazardous Materials Safety (OHMS), and in conformance with the requirements of a DOT Specification 39 cylinder (§§ 178.35 and 178.65) except as follows:

§ 178.65(a) *Type, size, service pressure and test pressure.*

Each cylinder must be made from steel and have seamless cylindrical body with bottom attached by means of a circumferential mechanical joint.

- (1) Water capacity may not exceed 32.5 cubic inches. Service pressure is 240 psig maximum.
- (2) Test pressure is 300 psig minimum.
- (3) * * *

§ 178.65(c) *Manufacture.*

(1) * * *

(2) * * *

(i) Mechanical joints must have strength equal to or greater than the minimum strength of the shell material in the finished cylinder.

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(3) Pressure relief devices.

The pressure relief system consists of a localized area of the bottom designed to fail at a minimum pressure of 315 psig and a maximum pressure of 480 psig. One cylinder must be taken from the beginning of production of each lot and pressurized until the relief system functions. If the system fails to function between 315 and 480 psig, the lot represented by the test must be rejected.

§ 178.65(d) *Wall thickness.*

Applies except that cylinders with wall thickness less than 0.0085 inch are not authorized.

§ 178.65(f) *Pressure tests.*

(1) Each cylinder must be tested at the internal pressure at 130E F or a pressure of 300 psig, whichever is higher.

(i) and (ii) * * *

(2) * * *

(i) * * *

(ii) A failure initiates in a mechanical joint.

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§ 178.65(i) *Markings.*

Applies except that each cylinder must be marked "DOT-SP 9393" instead of "DOT-39".

b. OPERATIONAL CONTROLS:

- (1) Filling density may not exceed 87 percent.
- (2) The cylinder must be shipped in strong outside packagings in accordance with § 173.301(a)(9).
- (3) The pressure of the lading at 70 °F may not exceed 240 psig; and at 130 °F, may not exceed 300 psig.

8. SPECIAL PROVISIONS:

a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this special permit for the transportation of the hazardous materials specified in paragraph 6 only in conformance with the terms of this special permit.

b. A person who is not a holder of this special permit, but receives a package covered by this special permit, may reoffer it for transportation provided no modification or change is made to the package and it is offered for transportation in conformance with this special permit and the HMR.

c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

d. Each packaging manufactured under the authority of this special permit must be marked with a registration symbol designated by the Office of Hazardous Materials Safety for a specific manufacturing facility.

e. A current copy of this special permit must be maintained at each facility where the package is manufactured under this special permit. It must be made available to a DOT representative upon request.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel and cargo aircraft only.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or aircraft used to transport packages covered by this special permit. The shipper shall furnish a current copy of this special permit to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) —“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. **REPORTING REQUIREMENTS:** Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Casey Chambers